

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR JULY 31, 2026 AT 8:30 A.M.**

These are the tentative rulings for the **FRIDAY, JULY 31, 2026 at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., THURSDAY, JULY 30, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: PARTIES MAY REQUEST A REMOTE APPEARANCE FOR ORAL ARGUMENT. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **COMMISSIONER CHRISTINE S. DEHR**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 1** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0081949 BREWER RD PTRS v. STORER, JEREMIAH

This tentative ruling is issued by the **Honorable Jeffrey S. Penney**:

The motion to set aside void judgment and for other orders is continued to **August 18, 2026 at 8:30 a.m. in Department 32**.

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2. M-CV-0082549 JOHNSON, KIP v. BOYD, MICHAEL

This tentative ruling is issued by the **Honorable Trisha J. Hirashima**:

The motion for attorneys' fees and sanctions is continued to **September 1, 2026 at 8:30 a.m. in Department 32** to be heard by the **Honorable Trisha J. Hirashima**. No further briefing is permitted.

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3. M-CV-0084034 NAVY FED CU v. CERVANTES, MIGUEL

Plaintiff's Motion to Deem Matters Admitted and Monetary Sanctions

The motion is granted. (Code of Civil Procedure section 2033.280(b).)

The matters encompassed in plaintiff's first set of requests for admission to defendant, set one, are deemed admitted.

Monetary sanctions are imposed upon defendant Miguel Cervantes in the amount of \$360.00. (Code of Civil Procedure section 2033.280(c).)

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4. M-CV-0090614 SIERRA WES WALL SYS v. HANLON, BRANDON

Defendant Brandon Hanlon's Motion for Leave to File Cross-Complaint

The motion is continued to **Friday, August 14, 2026 at 8:30 a.m. in Department 1** to afford defendant an opportunity to file a copy of the proposed cross-complaint. Exhibit B attached to the declaration of Ryan Wright in support of the motion includes an answer. There is no copy of the proposed cross-complaint that has been presented to the court in relation to the pending motion.

The proposed cross-complaint may be filed and served by 12:00 p.m. on August 7, 2026.

Defendant Christine Filice-Hanlon's Motion to Set Aside Default

The motion is denied.

Defendant has not made a sufficient showing to support the requested relief.

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5. M-CV-0098236 DAVIS, RAMONA v. BROWN, ALYSSA

Defendant Alyssa Brown's Motion to Set Aside Default and Default Judgment and Plaintiff's Application to Vacate Stay of Execution

The appearances of the parties are required for both motions.

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6. R-SC-0028636 McCauley, Bobby v. Robbins, John

Plaintiff's reserved hearing regarding motion for replevin is dropped from the calendar as no moving papers were filed with the court.

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7. S-CV-0047819 REALI, ANDREW v. ROBLES, VINCENTE

Defendant FC Sporting (Sacramento)'s reserved hearing for motion to compel IME is dropped from the calendar as no moving papers were filed with the court.

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8. S-CV-0049238 McCREARY, CAMERON v. VICARA HOA

Brady & Vinding's Motion to be Relieved as Counsel of Record for Defendant Vicara Homeowners Association

The motion is granted as prayed.

Brady & Vinding shall be relieved as counsel of record for defendant Vicara Homeowners Association upon the filing of the proof of service of the signed order after hearing on defendant Vicara Homeowners Association.

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9. S-CV-0050336 BAL, GURMAN v. AMERIO, ASHLEY

This tentative ruling is issued by the **Honorable Trisha J. Hirashima**:

The motion to set aside judgment is continued to **September 8, 2026 at 8:30 a.m. in Department 32** to be heard by the **Honorable Trisha J. Hirashima**. No further briefing is permitted.

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10. S-CV-0052726 FECHNER, MARC v. ABBA, AMANDA

Sergey Dzhedzhera, Esq.'s Motion to be Relieved as Counsel for Plaintiff Marc Fechner

The motion is granted as prayed.

Sergey Dzedzhera, Esq. shall be relieved after the filing of the proof of service of the signed order after hearing on plaintiff Marc Fechner.

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11. S-CV-0053138 WRIGHT, TERRANCE v. PLACER CO SHERIFF'S DEPT

**NOTE: If oral argument is requested in this case, it shall be heard on
JULY 31, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Defendants Placer County Sheriff's Department and County of Placer's Motion for
Judgment on the Pleadings

The appearances of the parties are required for the hearing.

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12. S-CV-0053416 SCHAFER, JACOB v. GREEN, RANDOLPH

Defendants Randolph Green and Annette Green's Demurrer to the Plaintiffs' Amended Complaint

The demurrer is sustained with leave to amend.

The fourth cause of action does not plead the level of specificity necessary to support a fraud-based claim.

The fifth cause of action does not plead sufficient factual allegations to support a quiet title claim.

The second amended complaint shall be filed and served by August 10, 2026.

Defendants Randolph Green and Annette Green's Motion to Strike the Plaintiffs' Amended Complaint

The motion is granted with leave to amend.

The allegations within the amended complaint do not plead sufficient facts to support an award for punitive damages.

The language in paragraph 20, p. 6:24-26 and paragraph 5 of the prayer, p. 11:6, is stricken.

The second amended complaint shall be filed and served by August 10, 2026.

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13. S-CV-0053798 ACEE GRP v. RISECON NA CORP

**NOTE: If oral argument is requested in this case, it shall be heard on
JULY 31, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Plaintiff's Motion to Expunge Mechanic's Lien and for Attorney Fees

The appearances of the parties are required at the hearing.

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14. S-CV-0054259 FARBER, JOHN v. APPLES & HONEYBEES

Plaintiffs' Motion to Strike and Motion to Quash Defendants Jeffrey Slott and Law Offices of Jeffrey A. Slott's Demurrer and Motion to Strike

The motion is denied.

The defaults entered against the defendants were set aside pursuant to the order entered on May 11, 2026. Moreover, Code of Civil Procedure section 430.40(a) is permissive in nature, stating that a demurrer *may* be filed within 30 days after the filing of the complaint. (*McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 280.) For these reasons, the motion is denied.

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15. S-CV-0054334 WILLIS, ANNETTE v. PAIZ, BRITTNEY

Plaintiff in Intervention Dry Creek Joint School District's Motion for Leave to Intervene

The unopposed motion is granted.

The complaint in intervention shall be filed and served by August 7, 2026.

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16. S-CV-0056015 CORBY, JARROD v. 24 HR FITNESS USA

Plaintiff's Motion to Quash Subpoena for Production of Business Records and Monetary Sanctions

The motion is granted as prayed.

The following subpoenas, issued by defendant 24 Hour Fitness USA, LLC on January 7, 2026, are quashed in their entirety:

- Orthopedic Trauma Surgeons of Northern California
- Sutter Roseville Medical Center
- Sutter Roseville Medical Center-Billing
- Sutter Roseville Medical Center-XRays
- MAC Performance Physical Therapy
- American Medical Response, Inc.

Monetary sanctions in the amount of \$2,510.00 are imposed, jointly and severally, upon defendant 24 Hour Fitness USA, LLC and defendant's counsel Peter Koenig, Esq.

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17. S-CV-0056185 LAFAYETTE FED CU v. DORADO, ANTHONY

Plaintiff's Motion to Deem Matters Admitted and Monetary Sanctions

The motion is granted. (Code of Civil Procedure section 2033.280(b).)

The matters encompassed in plaintiff's first set of requests for admission to defendant, set one, are deemed admitted.

Monetary sanctions are imposed upon defendant Anthony Dorado in the amount of \$360.00. (Code of Civil Procedure section 2033.280(c).)

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18. S-CV-0056419 ROGERS, PAMELA v. TCG ROCKLIN CAMPUS

**NOTE: If oral argument is requested in this case, it shall be heard on
JULY 31, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Defendants TCG Rocklin Campus, LLC and Sagora Senior Living, Inc.'s Petition to
Compel Arbitration and Case Management Conference

The appearances of the parties are required for both hearings.

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19. S-CV-0056734 TAYLOR INVEST v. LAGERQUIST, REID

This tentative ruling is issued by the **Honorable Michael W. Jones**:

Plaintiff's motion to dissolve or modify injunction pursuant to Code of Civil Procedure section 533 and Plaintiff's motion for leave to file second amended complaint are continued to **August 20, 2026 at 8:30 a.m. in Department 3** to be heard by the **Honorable Michael W. Jones**. No further briefing is permitted.

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20. S-CV-0057046 HAVILAND, ELIZABETH v. SOBERLINK HEALTHCARE

Defendant Soberlink Healthcare, LLC's demurrer to the complaint is dropped from the calendar. A notice of withdrawal of the demurrer was filed on July 23, 2026.

Defendant Soberlink Healthcare, LLC's reserved hearing for stay is dropped from the calendar as no moving papers were filed with the court.

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21. S-CV-0057349 BERNES, JEFFREY v. FCA US

Defendant FCA US LLC's demurrer to the complaint is dropped from the calendar.

A notice of withdrawal of demurrer was filed on July 24, 2026.

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22. S-CV-0057556 IRPO GOLNOOSH HAJISHEIKHI

The petition to vacate arbitration award is dropped from calendar in light of the order entered on July 28, 2026.

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23. S-CV-0057884 GARCIA, JUAN v. NORMAN, JOSHUA

**NOTE: If oral argument is requested in this case, it shall be heard on
JULY 31, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Petition for Order Authorizing Preservation of Evidence

The petition is denied without prejudice. There is no proof of service in the file showing respondents were properly served with the pending petition. (Code of Civil Procedure section 2035.040.)

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24. T-CV-0002654 HERLEY, JOHN v. SUGAR BOWL CORP

**NOTE: If oral argument is requested in this case, it shall be heard on
JULY 31, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Defendant Sugar Bowl Corporation's Motion to Compel Plaintiff to Pay Sanctions

The motion is denied.

Plaintiff's request for sanctions is granted. Monetary sanctions in the amount of \$1,060.00 are imposed upon defendant Sugar Bowl Corporation and defendant's counsel Timothy Smith, jointly and severally.

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25. T-CV-0002744 TAHOE PARADISE CONST v. MARKETONE BUILDERS

Plaintiff's Motion for Leave to File Amended Verified Complaint

The unopposed motion is granted.

Plaintiff shall file and serve the first amended verified complaint by August 7, 2026.

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